hurly-burly of politics, Kejriwal's own journey has taken an ironical twist. The two-time Delhi chief minister finds himself embroiled in corruption charges and under arrest, along with three other top leaders of AAP, including his deputy Manish Sisodia.

The irony did not end there. On March 21, when the Enforcement Directorate (ED) arrested Kejriwal under the Prevention of Money Laundering Act (PMLA), 2002, for his alleged role in the Delhi liquor policy scam (*see box*), among the people who reached his home to show solidarity was Congress leader Sandeep Dikshit, son of the late Sheila Dikshit. Indeed, the entire Congress brass came out in support, calling the arrest an attack on democracy by the Narendra Modi-led BJP government. Never mind that it was the Congress that first wrote to the Delhi police commissioner in June 2022 with the demand for a probe into a 'multi-crore scam' in illegal distribution of liquor licences by the AAP government.

The unusual camaraderie of the present is perhaps the result of an existential crisis among the Opposition parties. The arrest of a sitting chief minister created history, especially as it comes less than a month before the start of the general election. Prior to Kejriwal's arrest, on January 31, another chief minister—Hemant Soren of Jharkhand—was arrested by the ED on charges of money-laundering in a mining-related case. Opposition leaders say the arrests are a bid to intimidate potential challengers to Modi and deny them a level playing field in the election. "Kejriwal's arrest is a watershed moment in India's democratic backsliding. The issue is not the merits of the ED case but the timing of the arrest. It signifies the BJP-led central government's anxiety to cripple the Opposition by not allowing it to organise or mobilise support for the elections," says political scientist Zoya Hasan.

The morning Kejriwal was arrested, former Congress president Sonia Gandhi made a rare appearance at a press conference and accused the Centre of freezing the party's bank accounts in a tax dispute that dates back to 2018-19. Sonia called it a systematic effort by Modi to cripple the Congress financially. Later that day, the Election Commission of India (ECI) released details of donors and recipients of electoral bonds, which had been declared unconstitutional by the Supreme Court on February 15. The Opposition claims the BJP cornered more than 50 per cent of the contribution from corporates, much of it as as quid pro quo for either handing contracts or going slow on probes initiated by Central agencies. For instance, AAP points to the electoral bonds worth nearly Rs 60 crore the BJP got from Aurobindo Pharmaceuticals director Sarath Chandra Reddy after his arrest in the Delhi liquor policy case.

The jury is still out on these 'donations' but one data set remains undisputed—since 2014, when PM Modi first came to power, there has been a four-fold jump in ED cases against politicians. Of the 125-plus prominent politicians probed between 2014-'24 by the ED, 96 per cent are from Opposition parties. At the India Today Conclave this year, the PM explained it away as the result of his zero tolerance policy against corruption and the free hand given to the agencies. Opposition leaders are unconvinced. They point to the slow or nil progress in central agency actions against top leaders such as Ajit Pawar in Maharashtra, Digambar Kamat in Goa, or Suvendu Adhikari in West Bengal, who have teamed up with the BJP. "The principles of probity and accountability must be applied equally to all parties," says Indu Agnihotri, former professor at the Jawaharlal Nehru University.

THE IMPORTANCE OF BEING KEJRIWAL

More than the alleged bias, Kejriwal's arrest has massive political implications for both the ruling BJP and the Opposition. Many observers believe Kejriwal is the only non-Congress leader (other than Modi) with pan-India appeal and



HINDUSTAN TIMES

WHAT IS THE DELHI EXCISE SCAM?

While the arrested leaders claim innocence, the ED says bribes of around Rs 600 crore changed hands

- On Nov. 17, 2021, the AAP government in Delhi launches a new excise policy marking the government's exit from the liquor business. Projecting a revenue increase of Rs 9,500 crore, AAP claims the policy will end the liquor mafia and black marketing, boost customer satisfaction and ensure fair distribution of liquor vends
- 849 liquor stores were to open in Delhi across 32 zones, each with a maximum 27 outlets. Earlier, govt corporations ran 475 of the 864 liquor stores
- On Jun. 2, 2022, the Congress writes to the Delhi Police seeking a probe into a 'multi-crore scam' in the distribution of liquor licences
- On Jul. 8, Delhi chief secretary Naresh Kumar submits a report to Lt Gov. **V.K. Saxena,** accusing